

Consultancy Services Agreement (excerpt)

Excerpt — Consultancy Services Agreement

Excerpt of clauses §1, §3, §5, §8 — full document on file with Helios Legal.

§1 Scope of services

Adriatic Advisory d.o.o. (“the Consultant”) shall provide *market access advisory services* to Helios Industrieanlagen GmbH (“the Client”) in respect of public-sector heating infrastructure tenders in the territories of Croatia, Bosnia and Herzegovina, Montenegro, Serbia and North Macedonia (the “Territories”).

Services shall include, without limitation:

- Identification of upcoming public tenders;
- Advisory on tender evaluation criteria and customary terms;
- *Facilitation of relationships with relevant local stakeholders* in the Territories;
- Ad-hoc verbal briefings on local market conditions.

§3 Fees

The Client shall pay a fixed advisory retainer of **EUR 50,000 per month** plus a **success fee of 4% of contract value** for any public tender in the Territories awarded to the Client during the term of this agreement.

Fees are payable on receipt of monthly invoice. *No deliverable acceptance is required as a precondition of payment.*

§5 Confidentiality

Both parties agree to treat the existence and content of this agreement as strictly confidential. The Consultant shall not be required to disclose the identity of any local stakeholders engaged for the benefit of the Client.

§8 Governing law and dispute resolution

This agreement is governed by the laws of the Republic of Croatia. Any disputes shall be resolved by arbitration in Zagreb.

Auditor’s note (margin): §1 wording (“facilitation of relationships”), §3 (no deliverable required for payment), §5 (consultant not required to disclose stakeholders), §8 (Croatian law / arbitration outside DE/EU jurisdiction familiar to client) — combined this set of clauses is a textbook pattern that warrants further investigation.